

Professorship of Corporate Law

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Business Law

Warranty Rights II

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Case 1a) – Case facts

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Conny (C) is an extremely talented and ambitious amateur baker. Therefore, she buys the kitchen machine “Helping Elf” in Tom’s (T) housewares store on October 1 at a price of 1,000€. Although the machine is of very high quality and currently the most popular model on the market, C and T agree on additional, integrated professional equipment (at no extra cost).

When C starts using her kitchen machine in the advent season, she is very dissatisfied with the baking results. Her Christmas cookies, which are extremely fine and challenging to make, are lumpy. C realizes that her kitchen machine lacks the professional equipment necessary for this type of pastry.

Case 1a) – Case facts

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On December 1, C goes to the store and complains to T. She demands a new kitchen machine with professional equipment or at least an upgrade for her machine. Otherwise, Christmas will have to be cancelled for her.

T does not understand C's request. He argues: "In this case, retrofitting the kitchen machine is technically impossible. You have not incurred any additional costs for the professional equipment. Besides, for private purposes, the kitchen machine is more than sufficient. I can't do anything for you."

Question: Did C revoke the contract?

Case 1b) – Case facts

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After the confrontation with T, C takes a few days to think about it. She realizes that in the future she would like to devote more time to hobbies other than housewifely activities. If she'll bake now and then, the kitchen machine will suffice even without professional equipment.

C therefore wants to keep the kitchen machine in its current condition, but demands a refund from T for the money she paid too much.

Question: Did C reduce the purchase price?

*	Purchase price	Value without defect (= with professional equipment)	Value with defect (= without professional equipment)
	Amount	1,000€	800€

Case 1c) – Case facts

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T realizes that re-delivering the kitchen machine is the better option for him after all, and C agrees. So T finally sent C a new kitchen machine with integrated professional equipment.

On the day before Christmas, the kitchen machine is in particularly heavy use. When C notices that she is missing some ingredients, she interrupts the baking, switches off the kitchen machine properly and goes to the supermarket. In C's absence, the kitchen machine catches fire. The reason for this is an improper production in the electronics, which caused a short circuit.

Case 1c) – Case facts

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The manufacturer had already detected this problem and started a recall campaign (what T knew). However, T was so frustrated by the back and forth with C that he mixed up the kitchen machines and sent her an affected one.

C's wooden kitchen cabinets with a value of 20.000€ are burned to ashes. C would like to have this value compensated by T.

Question: Can C demand damages from T for the kitchen cabinets?

Case 1d) – Case facts

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Admittedly, C is not entirely unhappy with the situation. She had been planning to renovate her kitchen for a long time anyway. She only lacked the occasion and the money to do it.

But what really bothers C is the situation with the burned kitchen machine. After the delivery of the second kitchen machine, C had a special cover for it personalized with her initials (value 25€). Unfortunately, she no longer has any use for it. The cover is not suitable for the successor model of the kitchen machine that has just been released. And a sale also makes no sense because of the personalization.

Case 1d) – Case facts

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C gave T two weeks to get her a new kitchen machine. However, T has resigned in the matter with C and no longer responds. Therefore, C demands at least the 30€ she paid for the cover.

Question: Can C claim reimbursement of futile expenses for the personalized cover in the amount of 30€?